should be defined by law and that this was a matter of the internal functioning of the assembly. The assembly was itself a democratically elected institution that was accountable to the electorate of the state. Instead, the court took it upon itself to interpret that provision, signalling that it would be the authoritative interpreter of all parts of the Constitution – even those that addressed one branch exclusively.

The most significant criticism of the Supreme Court's decision focused on the interplay between fundamental rights and parliamentary privileges. In a previous case only a few years before the Supreme Court's decision, the court had arrived at a different view.[19] A Patna daily called *Searchlight* had published a portion of the proceedings of the Bihar Assembly that had been expunged. A notice for breach of privilege was issued, and the editor of *Searchlight* argued that parliamentary privileges would yield to the fundamental right to freedom of speech and expression in the event of a conflict. At that time the court disagreed with this position.

In the Keshav Singh reference, the Supreme Court took the opposite view – that parliamentary privilege would yield to the fundamental right to personal liberty. However, it did so without overturning the decision in the *Searchlight* case. As a consequence, the legal position was that parliamentary privilege would trump some fundamental rights, but not others. These decisions skewed the incentives of legislatures to codify the law on privileges. Parliament and the state assemblies now lacked an incentive to codify privileges into law, as this law, being ordinary, would be inferior to all (rather than just some) fundamental rights. The result therefore was that even though the Constitution contemplated the codification of parliamentary privileges, this codification has never taken place.

Paradoxically, over seventy years after Indian independence, privileges continue to remain tied to those of the House of Commons as they were in January 1950. Although a cosmetic amendment was made to Article 194 to eliminate the reference to the House of Commons in 1978, its effect remains much the same.[20] Dr Rajendra Prasad's statement in the Constituent Assembly that 'Parliament may never legislate' on this issue and that the members should 'be vigilant' was prescient.[21] That was not by